

IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

JOHN DOE,
Petitioner,

v.

THE STATE OF ARIZONA,
Respondent.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR NOTATION OF CLEARANCE AFTER A WRONGFUL ARREST OR CHARGE PURSUANT TO A.R.S.
§ 13-4051

STATUTORY AUTHORITY

A.R.S. § 13-4051 – Any person wrongfully arrested, indicted, or otherwise charged may petition the superior court for an order entering a notation on all court, police and agency records that the person has been cleared, with accompanying justification, plus an order that agencies not release copies except on court order.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Superior Court of the State of Arizona, Maricopa County, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Maricopa County, Arizona.

II. PARTIES

3. Petitioner is JOHN DOE, whose address is 123 Main Street, Phoenix, AZ 85001.
4. Respondent is the State of Arizona.

III. FACTS AND CASE HISTORY

5. On or about 01/15/2024, Petitioner was charged with Shoplifting (synthetic sample charge) by Sample City Police Department.
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. On 03/01/2024, the matter was resolved with the following disposition: Charge dismissed; Petitioner asserts the arrest was wrongful.

IV. ELIGIBILITY ALLEGATIONS

8. Petitioner may be eligible for notation of clearance on the following basis: wrongful arrest or charge under A.R.S. § 13-4051 (Petitioner asserts the arrest was wrongful and asks the court to enter a notation of clearance).
9. Petitioner states, in Petitioner's own words, why the arrest was wrongful: the arresting agency identified the wrong person and the charge was dismissed (synthetic sample statement).
10. Petitioner identifies the following records for the notation of clearance: the arrest record held by the arresting agency and the charge record held by the court identified above (synthetic sample records list).

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the notation of clearance of all court, police and agency records of the wrongful arrest, indictment or charge, with a notation that Petitioner has been cleared and an order that such agencies not release copies of the records except on court order in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to enter a notation of clearance on all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
123 Main Street, Phoenix, AZ 85001

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- Records list identifying the court, police and agency records to receive the notation of clearance

Prepared by petitioner using LegalEase RCAP. This is not an official court form.